

RESIDENTIAL LEASE AGREEMENT

This Residential Lease Agreement (the "Lease") is made between Harrowgate Property Holdings LLC (the "Landlord") and Dana R. Whitfield (the "Resident"). This writing states the entire agreement of the Landlord and the Resident, and no other paper, list, posting, or spoken understanding forms any part of it.

1. PARTIES AND PREMISES

1.1 The Landlord leases to the Resident the dwelling unit known as Apartment 4B, 118 Fenmore Street, City of Ashgrove (the "Premises").

1.2 The Premises are let for residential use by the Resident and the members of the Resident's immediate household only.

1.3 The Resident has examined the Premises and accepts them in the condition they are in on the first day of the Term.

1.4 The Landlord makes no promise to alter, improve, or furnish the Premises beyond what this Lease states in writing.

1.5 The Premises include one refrigerator, one gas range, one dishwasher, and the window coverings that were in place at the showing.

2. TERM

2.1 The Term of this Lease begins on March 1, 2027 and ends at noon on February 28, 2028.

2.2 The Resident shall return possession of the Premises to the Landlord on or before the last day of the Term.

2.3 If the Resident remains in the Premises after the Term without a signed renewal, the tenancy continues month to month on the same terms until either party gives thirty (30) days written notice.

2.4 Possession begins when the Landlord delivers the keys, and the Landlord will deliver the keys at the building office between nine in the morning and five in the afternoon.

3. RENT

3.1 The Resident shall pay rent of \$2,150 per month, due in advance on the first day of each month, without demand or invoice.

3.2 Rent shall be paid through the Landlord's online payment portal or by check delivered to the Landlord's business office.

3.3 Rent received after the fifth day of the month is treated as late, and a late charge of \$50 is then added to the amount due.

3.4 Acceptance of a partial payment does not waive the Landlord's right to the balance of the rent for that month.

3.5 The first full month of rent is due on or before the day the Resident takes possession of the Premises.

4. RENT CHANGES ON RENEWAL

4.1 This Lease does not renew automatically, and any renewal must be signed by both the

Landlord and the Resident.

4.2 Rent for any renewal term shall increase by the greater of twelve percent (12%) or the change in the regional consumer price index over the preceding twelve months, and the Landlord may add to that increase any rise in property taxes or utility costs that the Landlord allocates to the Premises.

4.3 The Landlord shall state the renewal rent in writing at least thirty (30) days before the Term ends.

4.4 The Resident is free to decline a renewal offer and return possession at the end of the Term.

5. SECURITY DEPOSIT

5.1 The Resident shall pay a security deposit of \$2,150 before taking possession of the Premises.

5.2 If the Resident vacates the Premises before the last day of the Term for any reason, the entire security deposit shall be retained by the Landlord as a nonrefundable charge for administration and re-letting, whatever the condition of the Premises at move-out.

5.3 The Landlord may deduct from the security deposit a flat repainting charge of \$450 at the end of the Term, and this charge applies whether or not the walls need repainting.

5.4 The Landlord may also deduct unpaid rent, unpaid utility bills, and the cost of restoring damage beyond ordinary wear.

5.5 The Landlord shall return the balance of the security deposit, with a written itemized statement of every deduction, within twenty-one (21) days after the Resident returns possession of the Premises.

5.6 The security deposit does not serve as the last month's rent, and the Resident shall not apply it to any rent payment.

6. UTILITIES AND BUILDING SERVICES

6.1 The Resident shall pay for electricity, natural gas, internet service, and any television service at the Premises, and shall place those accounts in the Resident's own name before the Term begins.

6.2 The Landlord shall pay for water, sewer service, and trash collection for the building.

6.3 The Landlord will tell the Resident in writing before any planned interruption of a building service that the Landlord pays for.

6.4 Trash is collected on Tuesday and Friday mornings, and the laundry room in the basement is open from six in the morning until ten at night.

6.5 The Landlord clears snow from the front walk and the rear steps after any snowfall of two inches or more.

7. USE OF THE PREMISES AND HOUSE STANDARDS

7.1 The Resident shall keep the Premises clean and shall not disturb the quiet enjoyment of the other residents of the building.

7.2 No aquarium holding more than ten (10) gallons of water may be kept in the Premises.

7.3 The Resident shall place felt pads under the legs of every chair, table, and sofa that rests on the wood flooring.

7.4 Smoking of any kind is not permitted anywhere inside the building.

7.5 Mail arriving for a previous occupant should be left in the marked basket in the lobby rather than handed back to the carrier.

7.6 The Resident may keep one cat, or one dog weighing under forty (40) pounds, with the written consent of the Landlord.

7.7 Quiet hours in the building run from ten at night until seven in the morning.

7.8 The Resident may place one doormat outside the door of the Premises, and nothing else may be left in the hallway.

7.9 The Resident shall sort recycling into the blue bins in the rear yard and shall break down cardboard boxes before placing them there.

8. OCCUPANTS AND GUESTS

8.1 Only the persons named on the signature page may occupy the Premises as their residence.

8.2 A guest may stay in the Premises for up to fourteen (14) consecutive nights without the Landlord's consent.

8.3 The Resident is responsible for the conduct of the Resident's guests in the Premises and in the common areas of the building.

9. CONDITION AND REPAIRS

9.1 The Resident shall pay the full cost of all repairs to the Premises, including repairs to the plumbing, heating, and electrical systems, whether the need for repair arises from the Resident's use or from the ordinary age and wear of the equipment.

9.2 The Resident shall report any condition needing repair to the Landlord's office in writing within three (3) days of noticing it.

9.3 The Landlord shall keep the building's common stairways, entry doors, and exterior lighting in working order.

9.4 The Resident shall replace the batteries in the smoke alarms inside the Premises when they fail.

10. ALTERATIONS

10.1 The Resident shall not paint, wallpaper, or drill into any wall or ceiling without the written consent of the Landlord.

10.2 The Resident may hang pictures and shelves using small nails or picture hooks.

10.3 Any fixture the Resident attaches to the Premises and does not remove by the last day of the Term becomes the property of the Landlord.

11. EARLY TERMINATION AND TRANSFER

11.1 A Resident who ends this Lease before the last day of the Term remains liable for all

rent that would have come due through the last day of the Term, and that entire amount is payable on the day the Resident hands back the keys.

11.2 Any transfer of this Lease to another occupant requires the written consent of the Landlord and payment of a reassignment charge of \$1,200, which is owed even when the Resident finds the replacement occupant without the Landlord's help.

11.3 A transfer takes effect only when the Landlord, the Resident, and the replacement occupant have all signed a written transfer agreement.

11.4 A member of the armed forces may end this Lease as permitted by federal law on written notice with a copy of the orders.

12. ACCESS TO THE PREMISES

12.1 The Landlord and the Landlord's agents may enter the Premises at any hour and without advance notice to inspect the unit, to carry out work, or to show the Premises to prospective residents or buyers.

12.2 The Landlord will make a reasonable effort to enter at hours that suit the Resident.

12.3 The Resident shall not change or add any lock without giving the Landlord a working key on the same day.

13. PARKING AND STORAGE

13.1 The Resident may rent one assigned parking space in the rear lot for \$75 per month, and may end the parking arrangement with thirty (30) days written notice.

13.2 The Resident may use one storage cage in the basement at no additional charge.

13.3 Bicycles belong in the basement rack rather than in the stairwells or the lobby.

14. DISPUTE RESOLUTION

14.1 The Resident and the Landlord each waive the right to a jury trial and the right to bring or join any class or collective proceeding, and agree that every dispute arising out of this Lease shall be decided by binding arbitration before a single arbitrator selected by the Landlord.

14.2 Any arbitration or other proceeding permitted by this Lease shall take place only in the county where the Landlord keeps its principal business office, which may be a county other than the one in which the Premises are located.

14.3 Each party pays its own attorney fees in any arbitration under this Lease.

15. MOVE-OUT

15.1 The Resident shall return every key, fob, and garage remote to the building office on or before the last day of the Term.

15.2 The Resident shall remove all personal property from the Premises and from the storage cage before returning the keys.

15.3 The Resident shall give the Landlord a forwarding address in writing so that the deposit statement can be mailed.

15.4 The Landlord will walk through the Premises with the Resident on request during the

final week of the Term.

15.5 The Resident shall leave the Premises broom clean, with the appliances emptied and the windows closed.

15.6 Any personal property the Resident leaves behind after the keys are returned may be donated by the Landlord after thirty (30) days.

16. NOTICES

16.1 Notices to the Resident may be delivered by hand, left inside the Premises, or sent to the email address the Resident gave the Landlord.

16.2 Notices to the Landlord must be sent to the business office address printed above the signature lines.

16.3 A notice is effective on the day it is delivered by hand or sent by email.

17. GENERAL PROVISIONS

17.1 The parties acknowledge that they have read this Lease in full and have had the opportunity to consider its terms.

17.2 If a court or arbitrator finds any part of this Lease unenforceable, the remaining parts stay in force.

17.3 This Lease is governed by the law of the state in which the Premises are located.

17.4 This writing is the complete and final agreement of the parties, and it may be changed only by a further writing signed by both of them.

17.5 The headings in this Lease are for convenience and do not affect the meaning of any provision.

SIGNATURES

Landlord: Harrowgate Property Holdings LLC, by Marcus Teale, Managing Agent

Business office: 402 Culver Row, Suite 210, Ashgrove

Date: _____

Resident: Dana R. Whitfield

Date: _____